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: SUMMONS

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Defendants

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Dated: October 11, 2024
 NEW YORK, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eight Avenue, Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Detective Saquoi Harris, Shield 1409 of NARCB BX

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Loucchie Brown, Marvin Thomas, Bilal Dalton and	:
Lucille Patterson,	:
	:
Plaintiffs	: VERIFIED COMPLAINT
	:
-against-	:
	:
City of New York, New York City Police Department,	:
Detective Saquoi Harris, Shield 1409 of NARCB BX and	:
and New York City Police Officers John Doe,	:
	:
Defendants	:
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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Loucchie Brown, (hereinafter referred to as "BROWN") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Marvin Thomas, (hereinafter referred to as "THOMAS") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Bilal Dalton (hereinafter referred to as "DALTON") is a resident of Orange County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Lucille Patterson, (hereinafter referred to as "PATTERSON") is a resident of Orange County, State of New York.

5. That at all times hereinafter mentioned, Detective Saquoi Harris, Shield 1409 of NARCB BX (hereinafter referred to as “HARRIS”) was employed by the New York City Police Department.

6. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

7. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

8. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

9. That on or about October 11, 2023 notice required by Municipal Law 50-E was given to City of New York as to BROWN, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

10. That on or about February 25, 2024 notice required by Municipal Law 50-E was given to City of New York as to Plaintiff DALTON, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

11. That on or about February 25, 2024 notice required by Municipal Law 50-E was given to City of New York as to Plaintiff PATTERSON, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees.

To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

12. That on or about March 12, 2024 notice required by Municipal Law 50-E was given to City of New York as to Plaintiff THOMAS, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

13. On or about March 8, 2024, a hearing required by Municipal Law 50-H was conducted as to DALTON. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

14. On or about April 3, 2024, a hearing required by Municipal Law 50-H was conducted as to DALTON. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

15. On or about April 3, 2024, a hearing required by Municipal Law 50-H was conducted as to PATTERSON. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

16. On or about May 10, 2024, a hearing required by Municipal Law 50-H was conducted as to THOMAS. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

17. That on or about September 6, 2023 at approximately 6:00 AM in the vicinity of 997 East 179 Street, apartment 1J, Bronx NY, Plaintiffs were asleep on the first floor of the apartment when HARRIS and DOES entered the above location wherein they handcuffed and arrested BROWN, THOMAS, DALTON and PATTERSON without any lawful reason.

18. That HARRIS and DOES claimed to have recovered a loaded firearm from inside of a bedroom wall on the second floor of the apartment mentioned above.

19. That at no time did BROWN possess or have in his custody and control any firearm.

20. That at no time did THOMAS possess or have in his custody and control any firearm.

21. That at no time did DALTON possess or have in his custody and control any firearm.

22. That at no time did PATTERSON possess or have in his custody and control any firearm.

23. That at no time did any of the Plaintiffs reside at or have a possessory interest in the above mentioned apartment.

24. That at no time did HARRIS or DOES observe any of the Plaintiffs inside of the bedroom, located on the second floor of the above mentioned apartment.

25. That at no time did HARRIS or DOES observe any of the Plaintiffs in possession of or exercise custody and control over the firearm allegedly recovered from inside of the wall the bedroom located on the second floor of the above mentioned apartment.

26. That after Plaintiffs were arrested they were all removed to the 48 Precinct

27. That while Plaintiffs were inside of the 48 precinct, Plaintiffs were each strip searched.
28. That while Plaintiffs were inside of the 48 precinct, BROWN, THOMAS and DALTON were held in a holding cell occupied with other males for several hours.
29. That while Plaintiffs were inside of the 48 precinct, PATTERSON was held in a holding cell occupied with other females for several hours.
30. That after several hours at the 48 police precinct, Plaintiffs were transported to Bronx County Central Booking located at 215 East 168 Street, Bronx, NY.
31. That on or about September 8, 2023 Plaintiffs were each arraigned and charge with Criminal Possession of a Firearm, as a felony.
32. That at the time of the arraignment, bail was set for BROWN and he was remanded to the custody of the New York City Department of Corrections.
33. That at the time of the arraignment, THOMAS, DALTON and PATTERSON were released on their recognizance and ordered to return to court.
34. That BROWN remained in the custody of the New York City Department of Corrections until October 2, 2023 when he posted bail.
35. That on and between September 8, 2023 and January 4, 2024 THOMAS, DALTON and PATTERSON each made several court appearances until the criminal case was dismissed upon application of the Bronx County District Attorney.
36. That on and between September 8, 2023 and January 16, 2024 BROWN made several court appearances until the criminal case was dismissed upon application of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

37. BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. That Defendants acted with actual malice toward BROWN and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the BROWN.

39. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

40. That as a result of the actions by Defendants, BROWN was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

41. That as a result of the Defendants' actions, BROWN has been unable to sleep.

42. That as a result of the Defendants' actions BROWN sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

43. BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the BROWN as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

45. Defendants having no lawful authority to arrest BROWN, did, nevertheless, unlawfully arrest BROWN with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus BROWN is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

46. BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. Defendants conspired to violate BROWN's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable for BROWN's false arrest and malicious prosecution. Thus, BROWN is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

48. BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47, as if more fully stated herein at length.

49. BROWN was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused BROWN to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of BROWN y Defendants were unjustified and done with actual malice and wanton

indifference to and deliberate disregard for human life and the rights of BROWN. Plaintiff is thus entitled to compensatory and exemplary damages.

50. That during the pendency of the case, Defendants maliciously prosecuted BROWN by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

BROWN is thus entitled to compensatory and exemplary damages.

51. That during the pendency of the case, Defendants maliciously prosecuted BROWN by claiming that BROWN possessed a firearm despite claiming that the firearm was recovered from inside of a bedroom wall that BROWN was not in, nor was he on the same floor of the bedroom.

52. That during the pendency of the case, Defendants maliciously prosecuted BROWN by claiming that BROWN possessed a firearm despite knowing that BROWN did not live the above mentioned apartment, nor did they defendants have reason to believe that they did.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

53. BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 52, as if more fully stated herein at length.

54. At all times pertinent hereto, HARRIS and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

55. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

56. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 55, as if more fully stated herein at length.

57. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including BROWN. BROWN is thus entitled to compensatory exemplary damages.

58. The City of New York and New York City Police Department's knew and supported police officers arresting people for possession of weapons whether probable cause to arrest existed or not, constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including BROWN. BROWN is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

59. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 58, as if more fully stated herein at length.

60. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of BROWN.

61. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of BROWN.

62. The City of New York and New York City Police Department knew that HARRIS was the subject of thirty-one (31) Civilian Complaint Review Board complaints, two of which were substantiated against him and despite such, they continued to employ HARRIS.

63. The City of New York and New York City Police Department knew that HARRIS was the subject of a disciplinary case, case number 2020-21976 wherein HARRIS disciplined for improperly frisking an individual in violation of that person's New York State and Federally protected rights. Despite such, they continued to employ HARRIS.

64. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Mistique Devalle, v. City of New York et al, index number 810803/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

65. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Abioseh Sambolah v. City of New York et al, index number 806320/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

66. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Yadullahi Muhammad v. City of New York et al, index number 800447/2022E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

67. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Towaki Komatsu v. City of New York et al, index number

20CV10942, United States District Court, Southern District. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

68. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Truth Serrano v. City of New York et al, index number 033556/2020E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

69. THOMAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68 as if more fully stated herein at length.

70. That Defendants acted with actual malice toward THOMAS and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the THOMAS.

71. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

72. That as a result of the actions by Defendants, THOMAS was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

73. That as a result of the Defendants' actions, THOMAS has been unable to sleep.

74. That as a result of the Defendants' actions THOMAS sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

75. THOMAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 74, as if more fully stated herein at length.

76. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of THOMAS as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

77. Defendants having no lawful authority to arrest THOMAS, did, nevertheless, unlawfully arrest THOMAS with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus THOMAS is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

78. THOMAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77, as if more fully stated herein at length.

79. Defendants conspired to violate THOMAS's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, THOMAS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

80. THOMAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 79, as if more fully stated herein at length.

81. THOMAS was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused THOMAS to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of THOMAS by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of THOMAS. THOMAS is thus entitled to compensatory and exemplary damages.

82. That during the pendency of the case, Defendants maliciously prosecuted THOMAS by continuing to cooperate in a prosecution when THOMAS should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

83. That during the pendency of the case, Defendants maliciously prosecuted BROWN by claiming that THOMAS possessed a firearm despite claiming that the firearm was recovered from inside of a bedroom wall that THOMAS was not in, nor was he on the same floor of the bedroom.

84. That during the pendency of the case, Defendants maliciously prosecuted THOMAS by claiming that THOMAS possessed a firearm despite knowing that THOMAS did not live the above mentioned apartment, nor did they defendants have reason to believe that they did.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

85. Plaintiffs BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 84, as if more fully stated herein at length.

86. At all times pertinent hereto, HARRIS and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

87. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS and DOES committed within the scope of their employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

88. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 87, as if more fully stated herein at length.

89. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including THOMAS. THOMAS is thus entitled to compensatory exemplary damages.

90. The City of New York and New York City Police Department's knew and supported police officers arresting people for possession of weapons whether probable cause to arrest existed or not, constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including THOMAS. THOMAS is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

91. THOMAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 90, as if more fully stated herein at length.

92. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of THOMAS.

93. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of THOMAS.

94. The City of New York and New York City Police Department knew that HARRIS was the subject of thirty-one (31) Civilian Complaint Review Board complaints, two of which were substantiated against him and despite such, they continued to employ HARRIS.

95. The City of New York and New York City Police Department knew that HARRIS was the subject of a disciplinary case, case number 2020-21976 wherein HARRIS disciplined for improperly frisking an individual in violation of that person's New York State and Federally protected rights. Despite such, they continued to employ HARRIS.

96. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Mistique Devalle, v. City of New York et al, index number 810803/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

97. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Abioseh Sambolah v. City of New York et al, index number

806320/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

98. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Yadullahi Muhammad v. City of New York et al, index number 800447/2022E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

99. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Towaki Komatsu v. City of New York et al, index number 20CV10942, United States District Court, Southern District. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

100. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Truth Serrano v. City of New York et al, index number 033556/2020E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS

101. DALTON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 100 as if more fully stated herein at length.

102. That Defendants acted with actual malice toward DALTON and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the DALTON.

103. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

104. That as a result of the actions by Defendants, DALTON was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

105. That as a result of the Defendants' actions, DALTON has been unable to sleep.

106. That as a result of the Defendants' actions DALTON sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

107. DALTON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 106, as if more fully stated herein at length.

108. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of DALTON as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

109. Defendants having no lawful authority to arrest DALTON, did, nevertheless, unlawfully arrest DALTON with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus DALTON is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

110. DALTON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 109, as if more fully stated herein at length.

111. Defendants conspired to violate DALTON's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, DALTON is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

112. DALTON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 111, as if more fully stated herein at length.

113. DALTON was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused DALTON to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of DALTON by Defendants were unjustified and done with actual malice and wanton

indifference to and deliberate disregard for human life and the rights of DALTON. DALTON is thus entitled to compensatory and exemplary damages.

114. That during the pendency of the case, Defendants maliciously prosecuted DALTON by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

115. That during the pendency of the case, Defendants maliciously prosecuted BROWN by claiming that THOMAS possessed a firearm despite claiming that the firearm was recovered from inside of a bedroom wall that THOMAS was not in, nor was he on the same floor of the bedroom.

116. That during the pendency of the case, Defendants maliciously prosecuted THOMAS by claiming that THOMAS possessed a firearm despite knowing that THOMAS did not live the above mentioned apartment, nor did they defendants have reason to believe that they did.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

117. DALTON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 116, as if more fully stated herein at length.

118. At all times pertinent hereto, HARRIS and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

119. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS and DOES committed within the scope of their employment.

AS AND FOR A TWENTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

120. DALTON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 119, as if more fully stated herein at length.

121. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including DALTON. DALTON is thus entitled to compensatory exemplary damages.

122. The City of New York and New York City Police Department's knew and supported police officers arresting people for possession of weapons whether probable cause to arrest existed or not, constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including THOMAS. THOMAS is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

123. DALTON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 122, as if more fully stated herein at length.

124. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of DALTON.

125. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of DALTON.

126. The City of New York and New York City Police Department knew that HARRIS was the subject of thirty-one (31) Civilian Complaint Review Board complaints, two of which were substantiated against him and despite such, they continued to employ HARRIS.

127. The City of New York and New York City Police Department knew that HARRIS was the subject of a disciplinary case, case number 2020-21976 wherein HARRIS disciplined for improperly frisking an individual in violation of that person's New York State and Federally protected rights. Despite such, they continued to employ HARRIS.

128. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Mistique Devalle, v. City of New York et al, index number 810803/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

129. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Abioseh Sambolah v. City of New York et al, index number 806320/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

130. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Yadullahi Muhammad v. City of New York et al, index number 800447/2022E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

131. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Towaki Komatsu v. City of New York et al, index number

20CV10942, United States District Court, Southern District. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

132. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Truth Serrano v. City of New York et al, index number 033556/2020E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION DEFENDANTS

133. PATTERSON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 132 as if more fully stated herein at length.

134. That Defendants acted with actual malice toward PATTERSON and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the PATTERSON.

135. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

136. That as a result of the actions by Defendants, PATTERSON was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

137. That as a result of the Defendants' actions, PATTERSON has been unable to sleep.

138. That as a result of the Defendants' actions, PATTERSON was forced to miss multiple days of school.

139. That as a result of the Defendants' actions PATTERSON sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS

140. PATTERSON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 139, as if more fully stated herein at length.

141. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of PATTERSON as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

142. Defendants having no lawful authority to arrest PATTERSON, did, nevertheless, unlawfully arrest PATTERSON with actual malice toward him and with willful and wanton indifference to and deliberate disregard for her constitutional rights. Thus, PATTERSON is entitled to both compensatory and exemplary damages.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

143. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 142, as if more fully stated herein at length.

144. Defendants conspired to violate PATTERSON's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, PATTERSON is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AGAINST DEFENDANTS

145. PATTERSON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 144, as if more fully stated herein at length.

146. PATTERSON was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused PATTERSON to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of PATTERSON by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of PATTERSON.

PATTERSON is thus entitled to compensatory and exemplary damages.

147. That during the pendency of the case, Defendants maliciously prosecuted BROWN by claiming that THOMAS possessed a firearm despite claiming that the firearm was recovered from inside of a bedroom wall that THOMAS was not in, nor was he on the same floor of the bedroom.

148. That during the pendency of the case, Defendants maliciously prosecuted THOMAS by claiming that THOMAS possessed a firearm despite knowing that THOMAS did not live the above mentioned apartment, nor did they defendants have reason to believe that they did.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

149. PATTERSON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 148, as if more fully stated herein at length.

150. At all times pertinent hereto, HARRIS and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

151. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS and DOES committed within the scope of their employment.

**AS AND FOR A TWENTY SEVENTH CAUSE OF ACTION AS AGAINST CITY OF
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

152. PATTERSON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 142, as if more fully stated herein at length.

153. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including PATTERSON. PATTERSON is thus entitled to compensatory exemplary damages.

154. The City of New York and New York City Police Department's knew and supported police officers arresting people for possession of weapons whether probable cause to arrest existed or not, constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including PATTERSON. PATTERSON is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST CITY OF
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

155. PATTERSON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 154, as if more fully stated herein at length.

156. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of PATTERSON.

157. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of PATTERSON.

158. The City of New York and New York City Police Department knew that HARRIS was the subject of thirty-one (31) Civilian Complaint Review Board complaints, two of which were substantiated against him and despite such, they continued to employ HARRIS.

159. The City of New York and New York City Police Department knew that HARRIS was the subject of a disciplinary case, case number 2020-21976 wherein HARRIS disciplined for improperly frisking an individual in violation of that person's New York State and Federally protected rights. Despite such, they continued to employ HARRIS.

160. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Mistique Devalle, v. City of New York et al, index number 810803/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

161. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Abioseh Sambolah v. City of New York et al, index number 806320/2023E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

162. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Yadullahi Muhammad v. City of New York et al, index number 800447/2022E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

163. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Towaki Komatsu v. City of New York et al, index number 20CV10942, United States District Court, Southern District. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

164. The City of New York and New York City Police Department knew that HARRIS was the subject of a civil rights lawsuit, Truth Serrano v. City of New York et al, index number 033556/2020E, Bronx County Supreme Court. Despite such, the City of New York and New York City Police Department continued to employ HARRIS.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction

of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the twenty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twenty-sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twenty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue, Suite 701
Bronx, NY 10018
(646) 256-1007

ATTORNEY VERIFICATION

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 11, 2024

Jason Steinberger
Jason A. Steinberger